

CHARITABLE REMAINDER UNITRUST AGREEMENT

BY AND BETWEEN

MARGARET A. HENDERSON
as Donor

AND

NATIONAL CHRISTIAN CHARITABLE FOUNDATION, INC.
as Trustee

Dated: March 15, 2023

Governing Law: State of Connecticut

PREPARED BY:

Morrison, Caldwell & Associates, LLP
245 Church Street, Suite 1200
Hartford, CT 06103

SECTION 1. CREATION OF TRUST. Margaret A. Henderson ("Donor") hereby establishes this Charitable Remainder Unitrust and transfers to National Christian Charitable Foundation, Inc. ("Trustee") the sum of \$2,450,000 as the initial trust corpus. The Trustee accepts said property and agrees to hold, manage, invest, and reinvest the same, and to collect the income therefrom, and to dispose of the net income and principal as hereinafter provided.

SECTION 2. PAYMENT OF UNITRUST AMOUNT. The Trustee shall pay to Henderson Family Foundation ("Recipient") in each taxable year during the unitrust period an amount equal to 5.0% of the net fair market value of the assets of the Trust valued as of the first day of each taxable year. The first year distribution based on the initial corpus is estimated at \$122,500. Payment shall be made quarterly.

SECTION 3. UNITRUST PERIOD. The unitrust period shall be a term of 20 years commencing on the date of this Agreement.

SECTION 4. DISTRIBUTION TO CHARITY. At the termination of the unitrust period, the Trustee shall distribute all remaining trust assets to St. Jude Children's Research Hospital, an organization described in Sections 170(b)(1)(A), 170(c), 2055(a), and 2522(a) of the Internal Revenue Code.

SECTION 5. TRUSTEE POWERS AND COMPENSATION. The Trustee shall have all powers granted to trustees under the laws of the State of Connecticut and those powers enumerated in the Uniform Prudent Investor Act, including the power to sell, lease, mortgage, or exchange trust property, to borrow funds, to vote stock, to settle claims, and to employ agents and advisors. As compensation, the Trustee shall receive an annual fee of 0.85% of the net fair market value of trust assets (estimated at \$20,825 based on the initial corpus). Said fee shall be payable quarterly in arrears from trust income. The Trustee shall additionally be reimbursed for all ordinary and necessary expenses of administration.

SECTION 6. IRREVOCABILITY. This Trust is irrevocable and may not be amended, altered, or revoked by the Donor or any other person, except to the extent necessary to maintain the Trust's qualification under Section 664(d) of the Code.

SECTION 7. PROHIBITED ACTIVITIES. The Trustee shall not engage in any self-dealing (Section 4941), retain excess business holdings (Section 4943), make jeopardizing investments (Section 4944), or make taxable expenditures (Section 4945).

SECTION 8. SUCCESSOR TRUSTEE. Should the Trustee cease to exist or resign, the Donor reserves the right to designate a successor trustee that qualifies under Section 501(c)(3) of the Code.

SECTION 9. GOVERNING LAW. This Agreement shall be governed by the laws of the State of Connecticut. If any provision is found invalid, the remainder shall continue in full force and effect.

IN WITNESS WHEREOF, executed this March 15, 2023.

Margaret A. Henderson
Donor

National Christian Charitable
Foundation, Inc., Trustee